

24PSCV02155 24PSCV02155

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Case Number: 24PSCV02155 Hearing Date: July 13, 2026 Dept: H

Chaballout v. American Honda

Motor Co., Inc., Case No. 24PSCV02155

ORDER ON MOTION

FOR ATTORNEYS' FEES

Plaintiff Abe Zane Chaballout's Motion

for Payment of Attorneys' Fees and Reimbursement of Costs and Expenses is granted

in the reduced total amount of \$22,873.74;

attorneys' fees are awarded in the reduced amount of \$20,690 and costs are

awarded in the requested amount of \$2,183.74.

Background

Plaintiff Abe Zane Chaballout ("Plaintiff") alleges

as follows:

On May 29, 2020, Plaintiff purchased a 2020 Honda Odyssey vehicle, VIN: 5FNRL6H77LB005818 ("subject vehicle"). The subject vehicle has since exhibited numerous defects, including electrical, infotainment, head unit, and radio malfunctions, which have not been repaired within a reasonable number of attempts.

On July 3, 2024, Plaintiff filed a complaint, asserting a cause of action against American Honda Motor Co., Inc. and Does 1-10 for Violation of the Song-Beverly Consumer Warranty Act.

On

April 6, 2026, Plaintiff filed a conditional "Notice of Settlement of Entire Case."

An

Order to Show Cause Re: Dismissal (Settlement) is set for July 13, 2026.

Pending

before the Court is Plaintiff's motion for attorneys' fees and reimbursement of costs.

Legal Standard

"Any buyer of consumer goods who is damaged by a failure to comply with any obligation under this chapter or under an implied or express warranty or service contract may bring an action for the recovery of damages and other legal and equitable relief." (Civ. Code § 1794, subd. (a).)

"If the buyer prevails in an action under this section, the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action." (Civ. Code § 1794, subd. (d).)

Discussion

Plaintiff

moves the Court, pursuant to Civil Code section 1794, for an award of attorney's fees and costs in his favor and against Defendant in the amount of \$34,356.94.

Merits

1. Entitlement to Fees

Defendant

does not oppose the motion as to the issue of entitlement to fees.

It is

undisputed, then, that Plaintiff is the prevailing party and, as such, is entitled to an award of attorneys' fees pursuant to Civil Code section 1794, subdivision

(d) and the parties' settlement.

2. Reasonableness of Fees

The Court

turns to the issue of reasonableness of the fees sought. "[T]rial courts have broad discretion in determining the amount of a reasonable attorney's fee award. This determination is necessarily ad hoc and must be resolved on the particular circumstances of each case." (Meister v. Regents of University of California (1998) 67 Cal.App.4th 437, 452.) "Trial judges are entrusted with this discretionary determination because they are in the best position to assess the value of the professional services rendered in their courts." (Christian Research Institute v. Alnor (2008) 165 Cal.App.4th 1315, 1321.)

"[O]nce

a party has established he or she is entitled to fees, the lodestar method is generally presumed to be the starting point in analyzing the appropriate amount of attorney fees. Under this method, a court first calculates the number of hours reasonably spent multiplied by the reasonable hourly rate for each billing professional, and then may adjust the amount based on various relevant factors to ensure the fee reflects the fair market value [of the attorney services] for the particular action. (K.I. v. Wagner (2014) 225 Cal.App.4th 1412, 1425 [quotations and citations omitted].)

a. Reasonableness of Hourly Rates

"In determining hourly rates, the court must look to the prevailing market rates in the relevant community. The rates of comparable attorneys in the forum district are usually used. In making its calculation, the court should also consider the experience, skill, and reputation of the attorney requesting fees. The court may rely on its own knowledge and familiarity with the legal market in setting a reasonable hourly rate." (Heritage Pacific Financial, LLC v. Monroy (2013) 215 Cal.App.4th 972, 1009 [internal quotations and citations omitted].)

The hourly rates in this matter are set forth as follows:

Attorney Aaron Fhima ("Fhima"), principle of Neale
& Fhima—\$625 per hour

Attorney Gabrielle M. Diamse ("Diamse"), senior
associate—\$545 per hour

Attorney Shehzaid Rahim ("Rahim"), associate—\$540
per hour

Attorney Jansher Rasa ("Rasa"), associate—\$485 per
hour

Paralegals—\$220 per hour

Defendant challenges the claimed attorney rates as
exorbitant and inflated.

The Court agrees that a reduction in the hourly
rates is warranted under the circumstances. This is a straightforward lemon law
case, with no cited complexities. Based on the Court's own experience and
knowledge, as well as the experience and qualifications of counsel as set forth
in the accompanying declarations, the Court finds that the above hourly rates
should be reduced to \$500 for Fhima, \$400 for Diamse, and \$350 for Rahmin and
Rasa.

b. Reasonableness of Time Incurred

"[T]he
verified time statements of the attorneys, as officers of the court, are
entitled to credence in the absence of a clear indication the records are
erroneous." (Horsford v. Board of
Trustees of California State University (2005) 132 Cal.App.4th 359, 396.)
"In challenging attorney fees as excessive because too many hours of work are
claimed, it is the burden of the challenging party to point to the specific
items challenged, with a sufficient argument and citations to the evidence.
General arguments that fees claimed are excessive, duplicative, or unrelated do
not suffice." (Premier Medical Management
Systems, Inc. v. California Ins. Guarantee Assn. (2008) 163 Cal.App.4th
550, 564.)

That

said, “[a] fee request that appears unreasonably inflated is a special circumstance permitting the trial court to reduce the award or deny one altogether.” (Serrano v. Unruh (1982) 36 Cal.3d 621, 635.) The court may “make across-the-board percentage cuts either in the number of hours claimed or in the final lodestar figure” in consumer law cases “when a voluminous fee application is made.” (Warren v. Kia Motors America, Inc. (2018) 30 Cal.App.5th 24, 41 [quotations and citation omitted].)

Here, Plaintiff’s counsel contends to have expended approximately 54.2 hours litigating this case, including reviewing the opposition, preparing a reply, and appearing for the motion hearing. Diamse attaches the firm’s billings as Exhibit A and B to her declaration. (Diamse Decl., ¶ 3-4., Exs. A and B.)

At the outset, based on the aforementioned fee reduction for Fhima, Diamse, Rahim, and Rasa, the Court reduces fees for already billed work to \$18,690. The Court will award additional attorney fees in the amount of \$2,000 for further work on the instant motion (i.e., five hours to review opposition, prepare reply, and attend the hearing).

Defendant contests the hours expended. Defendant notes that there were no motions filed in this case beyond the instant motion and that no expert discovery or vehicle inspection occurred. (Herzog Decl., ¶ 2-4.) Additionally, there was only one deposition that lasted an hour and a half. (Id. at ¶ 5.) Defendant also argues that Plaintiffs served standard discovery with no follow-up and the responses contained little information specific to the case. (Id. at ¶ 6, 7.) Additionally, the Stipulated Protective Order is a standard order used by Plaintiff’s counsel and defense counsel in every case the firms have handled together. (Id. at ¶ 8.) Also, Plaintiff’s Objection to AHM’s 998 served on October 6, 2025 was identical to the objection served on October 30, 2024. (Id. at ¶ 9.) Finally, the case did not go to trial and never was set for trial. (Id. at ¶ 10.)

Defendant’s objections are overruled. The Court has reviewed the firm’s billings and finds the hours billed to be reasonable.

c. Multiplier

While the lodestar reflects the basic fee for comparable legal services in the community, it may be adjusted based on various factors, including “(1) the novelty and difficulty of the questions involved, and the skill displayed in presenting them; (2) the extent to which the nature of the litigation precluded other employment by the attorneys; (3) the contingent nature of the fee award” and (4) the success achieved. (Serrano v. Priest (1977) 20 Cal.3d 25, 49.)

Nonetheless, the court must not consider extraordinary skill and the other Serrano factors to the extent these are already included with the lodestar. (Ketchum v. Moses (2001) 24 Cal.4th 1122, 1138-1139.) “[A] trial court should award a multiplier for exceptional representation only when the quality of representation far exceeds the quality of representation that would have been provided by an attorney of comparable skill and experience billing at the hourly rate used in the lodestar calculation. Otherwise, the fee award will result in unfair double counting and be unreasonable.” (Id. at 1139.)

Plaintiff requests a lodestar multiplier enhancement of 0.2. The Court finds that under the circumstances of this case, a lodestar multiplier is not appropriate. Nothing before the Court indicates that the case presented novel issues or that the quality of representation far exceeded the quality of representation that would have been provided by attorneys of comparable skill and experience billing at the same rates. Further, in terms of the contingency basis, the Court finds that such consideration and risk is already included within the lodestar amount.

Accordingly, the Court declines to award a lodestar multiplier

4. Costs

Allowable costs

“shall be reasonably necessary to the conduct of the litigation rather than merely convenient or beneficial to its preparation.” (Code Civ. Proc., § 1033.5, subd. (c)(2).) Any items not specifically mentioned by statute “may be allowed or denied in the court’s discretion.” (Id., subd. (c)(4).) The Beverly-Song Act allows a successful plaintiff to recover both “costs” and “expenses.” (See Civ. Code, § 1794, subd. (d).)

“If the items appear to be proper charges the verified memorandum is prima facie evidence that the costs, expenses and services therein listed were necessarily incurred by the defendant [citations], and the burden of showing that an item is not properly chargeable or is unreasonable is upon the [objecting party].’ [Citation.]” (Nelson v. Anderson (1999) 72 Cal.App.4th 111, 131.)

Plaintiff requests a total of \$2,183.74 in costs. The cost items appear to be proper, and there was no opposition challenging any particular cost item. Therefore, the Court awards Plaintiff the requested amount without any reductions.

Conclusion

The motion for attorney’s fees and costs is granted, in the reduced amount of \$22,873.74, with attorneys’ fees awarded in the reduced amount of \$20,690 and costs awarded in the requested amount of \$2,183.74.